Customs and Excise (Food, Soap and Cosmetic Manufacturers) (Suspension) Regulations, 2025

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IT is hereby notified that the Minister of Finance, Economic Development and Investment Promotion has, in terms of section 235, as read with Section 120, of the Customs and Excise Act [*Chapter 23:02*], made the following regulations:—

Title

1. (1) These regulations may be cited as the Customs and Excise (Food, Soap and Cosmetics Manufacturers) (Suspension) Regulations, 2025.

(2) These regulations shall come into effect from 1st January, 2026.

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Interpretation

2. In these regulations—

"applicant" means a manufacturer making an application for registration as a food, soap and cosmetics manufacturer in terms of these regulations;

"Form" means the appropriate form referred to in the First Schedule;

"goods" means any materials referred to in the Second Schedule used in the manufacture of food, soap and cosmetics;

"manufacturer" means any person who is registered as a manufacturer of food, soap and cosmetics in terms of section 5.

Completion and use of prescribed forms

3. (1) All forms in terms of these regulations and copies therefore shall be completed indelibly in a legible manner.

(2) A proper officer may refuse to accept any form if he or she considers that any part if it is illegible and that it has not been properly completed.

Grant of suspension

4. Subject to these regulations, a suspension of duty shall be granted on goods referred to in the Second Schedule, imported or taken out of bond by a manufacturer for use in the manufacture of food, soap and cosmetics.

Registration of manufacturers

5. (1) Only approved manufacturers shall be eligible to apply for the food, soap and cosmetics manufacturers' suspension.

(2) Any person who wishes to claim a suspension of duty in terms of these regulations shall apply to the proper officer in the appropriate Form for registration as a manufacturer.

(3) An application referred in subsection (2) shall be supported by such additional information or documents as the Commissioner

may require which include and shall be made before the importation or removal from bond of any goods intended for the manufacture of food, soap and cosmetics.

(4) In order to be eligible for registration hereunder the applicant must be registered with the Zimbabwe Revenue Authority and have a valid tax clearance certificate.

(5) On receipt of an application in terms of this section the proper officer shall, before referring the application for consideration by the Commissioner, inspect the applicant's premises and machinery and report his or her findings to the Commissioner.

(6) If the Commissioner approves the application, he shall call on the applicant to—

(a) erect on his or her premises the stores provided for in section 9; and

(b) enter into a bond on the appropriate Form, with sufficient surety in an amount determined by the Commissioner, for the securing of duty and compliance with the requirements of these regulations; and

(c) pay the fee referred to in section 6.

(7) When the applicant has complied with the requirements of this section, the Commissioner shall register the applicant and the fee for registration as a manufacturer shall be the amount prescribed in terms of section 173 of the Customs and Excise (General) Regulations, 2001, published in Statutory Instrument 154 of 2001:

Provided that where the registration of an applicant is approved after the 30th June in any year, the fee shall be half of the fee referred to in this subsection.

(9) The prescribed fee for renewal of registration of a manufacturer shall be payable annually on or before the 31st of January every year.

(10) The Commissioner may reject an application for registration if he or she is of the opinion that—

(a) adequate control of goods imported or taken out of bond under suspension of duty in terms of these regulations is not likely to be maintained; or

(b) any provision of these regulations will not be complied with.

Storage of duty suspended goods

6. (1) The applicant shall provide on his or her premises secure stores for the safe storage of goods on which duty has been suspended and shall, at his or her own expense, provide the necessary fastenings so that the stores may be secured with Customs locks.

(2) No goods on which duty has been suspended may be stored elsewhere than in the stores provided for in subsection (1), and no such store shall, without the prior written permission of the Commissioner, be used for any other purposes.

Clearance of goods

7. (1) Goods to be entered under the suspension of duty provided for in these regulations shall be entered for consumption at the port of entry nearest to the premises of the manufacturer.

(2) A manufacturer shall, when effecting entry on importation or on removal from bond of goods intended for manufacture under suspension, submit with the relevant bill of entry a declaration signed by him or her, to the effect that the goods are to be used solely in the manufacture of food, soap and cosmetics.

Manufacturer to keep stock-book

8. (1) A manufacturer shall keep a stock-book, in a form approved by the Commissioner, showing full particulars of all receipts and disposals of goods entered for the manufacturer of food, soap and cosmetics in such a manner that the suspension goods can readily be accounted for the satisfaction of the Commissioner.

(2) If a manufacturer fails to keep a stock-book in the manner approved in terms of subsection (1), any suspension goods received by the manufacturer during the period when the stock-book was not so kept shall be deemed to have been used for a purpose other than that for which the suspension was granted unless the manufacturer satisfies the Commissioner that the suspension goods were used for the purpose for which the suspension was granted.

(3) The stock-book and premises of a manufacturer shall be open for inspection by a proper officer at any time.

Disposal of duty suspended goods

9. (1) Subject to subsections (2) and (3), a manufacturer shall not, except with the written authority of the Commissioner, and on payment of the duty suspended, dispose of any suspension goods otherwise than in accordance with these regulations.

(2) The Commissioner may authorise the disposal of suspension goods on payment of such duty, not exceeding the amount of duty suspended, as he or she thinks fit, if in the opinion of the Commissioner, the goods cannot be economically used for the purpose for which they were entered under suspension.

(3) A manufacturer shall, when required by the Commissioner to do so, carry out under the supervision of a proper officer, at such times as the Commissioner may consider necessary, any manufacturing operation in which goods entered under suspension are used.

(4) Duty on suspension goods which are accidentally destroyed before being used in the manufacturer of food, soap and cosmetics may be remitted if the Commissioner is satisfied that every reasonable effort was made and precaution taken to prevent their destruction.

Eligibility of goods for suspension

10. Only the goods listed in the Second Schedule shall be eligible for suspension if imported under the tariff heading indicated opposite thereto.

Cancellation of registration

11. (1) The Commissioner may cancel or suspend the registration of a manufacturer if such manufacturer—

(a) ceases to manufacture food, soap and cosmetics; or

(b) fails to comply with or contravenes any of the provisions of these regulations; or

(c) fails to pay the fee for the renewal of registration in accordance with subsection (7) of section 5; or

(d) so requests.

(2) If any registration is cancelled in terms of subsection (1), any duty suspended shall immediately become due and payable.

Transparency and accountability in the utilisation of suspension facility

12. (1) A manufacturer shall be required to present to the Minister, an annual report in a form approved by the Minister, showing full particulars of all the benefits achieved in the utilisation of the suspension facility granted in terms of these regulations. The report shall be in such a manner that the effect on the following aspects on the manufacturer's business can be readily ascertained or accounted for to the satisfaction of the Minister—

(a) the incremental employment levels achieved by the manufacturer;

(b) capacity utilisation levels attained from the use of the suspension;

(c) value of new investment received since the implementation of the suspension;

(d) growth in the manufacturer's output; and

(e) research and development initiatives carried out by the manufacturer.

(f) for manufacturers that export their products, CD1 forms discharged for the period prior to the application for the suspension;

(g) corporate social responsibilities executed by the manufacturer; and

(h) activities to protect the environment against degradation.

(2) If a manufacturer fails to produce the annual report in the manner approved in terms of subsection (1), the suspension shall be immediately withdrawn and any suspension goods received by the manufacturer during the period when the report was not so produced shall be deemed to have been used for a purpose other than that for which the suspension was granted. The manufacturer shall be required to pay the suspended revenue forthwith and the penalty for failure to keep records.

(3) The annual report by the manufacturer shall be submitted within thirty days from the end of the twelve months period calculated from—

(a) the 1st January, 2026 in the first year; and

(b) thereafter from the 1st of January every year subsequently.

FIRST SCHEDULE (*Section 2*)

FORMS

Form Titles
Application for registration
Food, soap and cosmetics manufacturer's Bond.

In terms of section 5(2) of the Interpretation Act [*Chapter 1:01*], these forms are not published in these regulations. They may be inspected free of charge at the offices of the Zimbabwe Revenue Authority, Harare, or at any of the offices of the Zimbabwe Revenue Authority in any Region.

SECOND SCHEDULE (*Section 10*)

GOODS ELIGIBLE FOR SUSPENSION

The goods listed below shall be imported under suspension only by manufacturers registered in terms of section 5 and as listed in the Third Schedule.

Heading No.	Tariff Code	Description of goods
15.11	1511.9090	Other palm oils and fractions
15.13	1513.2990	Other palm kernel oils and fractions
28.15	2815.11.00	Solid sodium hydroxide (caustic soda)
28.33	2833.11.00	Disodium sulphate
28.35	2835.31.00	Sodium tripolyphosphate
28.36	2836.20.00	Disodium carbonate
28.39	2839.19.00	Other (Sodium silicate)
34.02	3402.31.00	Linear alkylbenzene sulphonic acids and their salts
	3402.39.00	Other
38.23	3823.19.10	Palm fatty acid
38.23	3823.19.90	Other industrial mono-carboxylic fatty acids, acid oils from refining